

Application of Doctrine is a Jury Question

As the California Supreme Court long ago held, ordinarily “whether a person has been suddenly confronted with imminent peril is a question of fact to be submitted to the jury.” (*Leo v. Dunham* (1953) 41 Cal.2d 712, 715.) Likewise, the California Supreme Court has held that when faced by an emergency “it is a question for the trier of fact to determine whether the person acted with reasonable care under all the circumstances.” (*Reynolds v. Filomeo* (1951) 38 Cal.2d 5, 14 citation omitted.)

Later cases have confirmed this procedure. (See e.g. *Warren v. Sullivan* (1961) 188 Cal.App.2d 150, 154 [“[O]rdinarily, whether a person has been suddenly confronted with imminent peril, or whether such peril was brought about through her own negligence, is a question of fact for the jury.”]; *Damele v. Mack Trucks* (1990) 219 Cal.App.3d 29, 37 [“Whether the conditions for application of the imminent peril doctrine exist is itself a question of fact to be submitted to the jury.”]; *Desrosiers v. Flight Int’l* (9th Cir. Ct. of Appeal 1998) 156 F.3d 952, 958 [same].) It is a “rare case” where the rule applies at a summary judgment motion. (*Shiver*, supra, 24 Cal.App.5th at 397.)

Here, we do not have the ‘rare case’ where the Court can determine as a matter of law that the ‘sudden emergency’ doctrine applies. It is properly a question of fact for the jury to decide if the tire blowout was ‘sudden and unexpected’ and whether Mr. Ross’ acted as a ‘reasonably careful person would have acted in a similar situation.’

Conclusion

Defendant/Cross-Complainant, Damien Sean Lamont Ross’ Motion for Summary Judgment is **denied**.

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

Amazon and Sokolovski’s Objections: (Both parties make the same objections, so they are addressed together.)

Objection 1: Overruled.

Objection 2: Sustained (Cal. Evid. Code §§ 1200, 1400-1401; *Box v. California Date Growers Assn.* (1976) 57 Cal.App.3d 266, 270 [“Indeed, it is well established that traffic accident reports are not admissible in evidence.”])

Objection 3: Sustained (Cal. Evid. Code §§1400-1401; 1200.)

10. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

HEARING IN RE: JOINDER FOR MOTION FOR RECONSIDERATION OF ORDER GRANTING DAMIEN SEAN LAMONT ROSS'S MOTION FOR SUMMARY JUDGMENT

FILED BY: SOKOLOVSKI, EVGENY

TENTATIVE RULING:

See Line 9.

11. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Amazon.com Services, LLC and Amazon Logistics, Inc.'s Motion for Summary Judgment and Summary Adjudication ("MSJ").

Factual Background

This matter pertains to a multiple vehicle accident that occurred on the I-80 in Hercules, California on October 23, 2020. The incident included several separate events. The series of events occurred at approximately 8:25 p.m. on what was a clear, dark, dry evening.

Damien Ross was driving in the #1 lane when he experienced a tire blowout. He stopped in the #1 lane as he determined that it was unsafe to attempt and cross the four lanes of traffic to exit the freeway. (See line 9.) Shortly thereafter, Benjamin Taylor successfully stopped behind Ross without impacting his vehicle.

Next, Torres was unable to stop in time and struck Taylor's vehicle. Following this collision, Ordonia was unable to slow her vehicle and collided with Torres's vehicle. After this occurred, the parties exited their vehicles to assess the situation and exchange information. A couple of the vehicles had their hazard lights on at this time.

Approximately ten minutes after Mr. Ross' flat tire occurred, Mr. Yumul, who was working for Amazon at the time, approached the accident scene traveling at approximately 70 miles per hour, with his cruise control set. The parties at the scene noticed that Mr. Yumul did not appear to be slowing. As such, Mr. Ross got back in his car. At least one of the other parties – who were all standing in the #1 lane as there was not shoulder in that area – was waving their arms attempting to signal the approaching car to slow down.

Mr. Yumul attempted to stop but was unable to. Mr. Yumul's vehicle struck the individuals Torres and Taylor, ultimately crashing into Mr. Ross' vehicle.

Procedural Issues

Depositions as Exhibits

When a deposition is used as an exhibit, "the exhibit must contain **only** the relevant pages of the transcript." (Cal. R. Ct. 3.1116 (b) emphasis added.) In addition, the "relevant portion of any testimony in the deposition **must be marked** in a manner that calls attention to the testimony." (Cal. R. Ct. 3.1116 (c) emphasis added.) Normally, this is done by either highlighting or bracketing the lines being cited to in the Memorandum and/or Separate Statement.

The Court notes that it informed the Parties of this requirement in its tentative and final order on Mr. Ross' MSJ. Despite this reminder, Amazon still failed to mark any of the pages from the three depositions that it included in as exhibits. Amazon should be prepared to explain why it believes it is not required to abide by the Rules of Court – especially when such rule has already been highlighted

by the Court.

Combined Motion

Almost exactly like the previous MSJ filed by Mr. Ross, the Notice for Amazon's MSJ indicates that it intends to seek summary judgment (or in the alternative summary adjudication) as to numerous pleadings. Specifically it states that it seeks summary judgment as "to the operative complaints of plaintiffs, David S. Taylor, Helene S. Taylor (hereafter, Taylor Plaintiffs), and Salvador Cerna Espinoza, Ayleen Cerna, and Remeo Cerna (hereafter, Cerna Plaintiffs), [as well as] the operative cross-complaints of Sean Lamont Ross, Estate of Vernice Hernandez Torres, Trieana Ordonia, and Evgeny Sokolovski (hereafter, collectively, Cross-Complaints.)

As previously explained by the Court, "[a] party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding, or "a party may move for summary adjudication as to one or more causes of action *within an action*." (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.) These references to "an action" in the summary judgment statute are singular references. The word "action" is defined as "an ordinary proceeding in a court of justice by which one party prosecutes another [...]" (Code Civ. Proc., § 22, emphasis added.)

"Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [citations.]" (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134 quoting *Security Pacific National Bank v. Adamo* (1983) 142 Cal.App.3d 492, 496.) "Where a cross-complaint is filed there are two simultaneous actions pending between the parties wherein each is at the same time both a plaintiff and a defendant." (*Ibid.* quoting *K.R.L Partnership v. Superior Court* (2004) 120 Cal.App.4th 490, 503.)

The Court previously noted that it was not aware of any authority which permits a party to challenge two separate complaints, as well as four separate cross-complaints (aka actions) via one motion. Mr. Ross did not provide any such authority when he filed his motion – and Amazon fails to cite any authority at this time authorizing such a procedure. While the Court in *RND Contractors, Inc. v. Superior Court* (2025) 112 Cal.App.5th 697 held that when a party files a motion for summary judgment any defendant that may be materially affected by that motion can file an opposition – even if not actually named – the Court did not address the issue of whether a party can file a single motion for summary judgment directed toward multiple actions.

Consistent with the Court's order with respect to Mr. Ross' improper MSJ, it was initially inclined to deny the MSJ without prejudice and require Amazon to re-file separate MSJs directed toward each pleading to which it wanted a ruling. However, given the impending trial date, and the failure of any party to object to Amazon's improper procedure, the Court will move forward with ruling on the motion.

This does not mean that Amazon can skirt its obligation to pay the required filing fee required for each motion. As Amazon should have paid a separate filing fee for each of its MSJs – one directed toward each pleading at issue – **Amazon is ordered to pay five additional MSJ filing fees.**

Standard

Summary adjudication is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

“When a defendant moves for summary judgment on the ground there is an affirmative defense to the action, the burden shifts to the plaintiff to show there is one or more triable issues of material fact regarding the defense after the defendant meets the burden of establishing all the elements of the affirmative defense.” (*Jessen v. Mentor Corp.* (2008) 158 Cal.App.4th 1480, 1484.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).) “All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment.” (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 757 quoting *Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.)

“Sudden Emergency” or “Imminent Peril” Defense

“Under the ‘sudden emergency’ or ‘imminent peril’ doctrine, ‘a person who, without negligence on his part, is suddenly and unexpectedly confronted with peril, arising from either the actual presence, or the appearance, of imminent danger to himself or to others, is not expected nor required to use the same judgment and prudence that is required of him in the exercise of ordinary care in calmer and more deliberate moments.’” (*Abdulkadhim v. Wu* (2020) 53 Cal.App.5th 298, 301-02 quoting *Leo v. Dunham* (1953) 41 Cal.2d 712, 714.) “A party will be denied the benefit of the doctrine ... where the party’s negligence causes or contributes to the creation of the perilous situation.” (*Ibid.* quoting *Pittman v. Boiven* (1967) 249 Cal.App.2d 207, 216.)

“The basis of the rule is ‘that the actor is left no time for thought, or is reasonably so disturbed or excited, that he cannot weigh alternative courses of action, and must make a speedy decision, based very largely upon impulse or guess. Under such conditions, the actor cannot reasonably be held to the same conduct as one who has had full opportunity to reflect, even though it later appears that he made the wrong decision, which no reasonable man could possibly have made after due deliberation....’” (*Schultz v. Mathias* (1970) 3 Cal.App.3d 904, 912 citations omitted.) “The test is whether the actor took one of the courses of action which a standard man in that emergency might have taken, and such a course is not negligent even though it led to an injury which might have been prevented by adopting an alternative course of action.” (*Id.* at 912-13.)

Analysis

Initially, as to the arguments that the ‘sudden emergency doctrine’ is an affirmative defense which Amazon failed to plead, the Court determined that it is not an affirmative defense. (See line 9.)

It is a little unclear what Amazon contends is the ‘sudden emergency’ which Mr. Yumul was faced with. Amazon argues that the ‘sudden emergency’ which confronted Mr. Yumul was “stopped traffic and persons standing on a freeway in the dark at 8:25 a.m. shortly after previous vehicle collisions.”

(MSJ at 4: 7-8.)

As outlined above, the accidents at issue did not ‘suddenly’ occur before Mr. Yumul but instead spanned over a period of time. First, Mr. Ross experienced a blowout causing him to stop in the #1 lane. Mr. Taylor then stopped behind his vehicle. Shortly thereafter, Torres then collided with Taylor’s vehicle. Following this collision, Ordonia was unable to slow her vehicle and collided with Torres’s vehicle. It is unclear how long all this took. However, after this occurred, a number of the parties exited their vehicles to assess the situation and exchange information.

The time from when Mr. Ross experienced the blowout until Mr. Yumul appeared on the scene was approximately 10-15 minutes. (Ross Depo. 37:2-38:6.) There was sufficient time for all of the above activities to occur, as well as the parties to exit their vehicles to assess the situation. (*Ibid.*; see also Espinosa Depo. at 83:1-14.) In other words, the situation that Amazon claims was a ‘sudden emergency’ had been in existence for approximately ten minutes prior to Mr. Yumul being confronted with it.

The ‘sudden emergency doctrine’ is only potentially applicable if a person is “suddenly and unexpectedly confronted with peril...” (*Abdulkadhim v. Wu* (2020) 53 Cal.App.5th 298, 301-02.) “The doctrine of imminent peril is properly applied only in cases where an unexpected physical danger is presented **so suddenly** as to deprive the driver of his power of using reasonable judgment.” (*Pittman v. Boiven* (1967) 249 Cal.App.2d 207, 216 emphasis added.) “The doctrine is properly applied only in cases where an unexpected physical danger is **so suddenly presented** as to deprive the injured party of his power of using reasonable judgment.” (*Sadoian v. Modesto Refrigerating Co.* (1958) 157 Cal.App.2d 266, 274.) “In absence of any evidence disclosing a situation of sudden peril, the doctrine is not applicable...” (*Ibid.* quoting *Groat v. Walkup Drayage & Warehouse Co.* (1936) 14 Cal.App.2d 350, 353.)

For example, in *Shiver* Ms. Adams attempted to enter a freeway via the on-ramp. (*Shiver*, 24 Cal.App.5th at 397.) While doing so she was being tailgated by a black vehicle. (*Ibid.*) That black vehicle then moved around her, the driver made an obscene gesture, then pulled in front of Ms. Adams and suddenly stopped. (*Ibid.*) The sudden emergency ‘arose because the black car suddenly braked in front of Adams’s car,’ which “presented an unanticipated situation since vehicles merging onto a freeway normally increase their speed of travel with the flow of traffic instead of suddenly stopping.” (*Id.* at 401.)

As outlined above, the stopped vehicles and people in the #1 lane were there for at least 5-10 minutes prior to Mr. Yumul coming to that area. No vehicle suddenly stopped in front of him or suddenly swerved out of the way giving Mr. Yumul no time to react to the stopped vehicles on the freeway. This was a static situation by the time Mr. Yumul arrived on the scene.

Amazon compares this matter to that outlined in *Abdulkadhim v. Wu*, supra. There, Wu was driving between 60 and 70 miles per hour when he saw a car stopped in the lane he was in about 20 to 30 car lengths ahead. (*Id.* at 300.) As such, he changed lanes and passed the vehicle driving between 40 and 50 miles per hour. (*Ibid.*) Al-Kuraishi was following Mr. Wu and crashed into the stopped vehicle. (*Ibid.*) Wu argued that the ‘sudden emergency doctrine’ applied given the stopped vehicle on the freeway before him. The Court agreed.

Abdulkadhim is distinguishable for several reasons. There is no discussion regarding when the vehicle

stopped or the conditions of the road on the date at issue. Likewise, it is unclear what the speed limit was in the area and whether Mr. Wu was driving within the allowable speed. In addition, the conditions in the instant case were dissimilar. There were multiple vehicles stopped for an extended period of time, the cars had hazard lights flashing, and there were people on the side of the freeway waving their arms to bring attention to the situation. There are factual disputes regarding the conditions of the scene – unlike in Wu where the Court found that the facts were not in dispute. (*Id.* at 302.)

To the extent that Amazon still claims that this static situation constitutes a ‘sudden emergency,’ the California Supreme Court long ago held that “whether a person has been suddenly confronted with imminent peril is a question of fact to be submitted to the jury.” (*Leo v. Dunham* (1953) 41 Cal.2d 712, 715.)

In addition to the above, the ‘sudden emergency doctrine’ is only applicable when there is no negligence on the part of the party asserting its application. (*Leo*, supra, 41 Cal.2d at 714.) The posted speed limit in the area of the accident is 65 miles per hour. (Hightower Depo. 31:7-15.) Amazon’s own undisputed fact indicates that Mr. Yumul was driving 70 miles per hour at the time of the incident. (UMF 6.) The parties dispute this and claim that he was driving slightly faster – approximately 73 miles per hour. (Responses to UMF 6.) Either way, it is undisputed that Mr. Yumul was travelling in excess of the posted speed.

Amazon argues that even if Mr. Yumul was driving over the posted speed limit he was still not violating the ‘basic speed law.’ Per Amazon, the “basic speed law is: ‘No person shall drive a vehicle upon a highway at a speed greater than is reasonable or prudent having due regard for weather, visibility, the traffic on, and the surface and width of, the highway, and in no event at a speed which endangers the safety of persons or property.’” (Veh. Code, § 22350.)” While this may be true, determining what would be ‘reasonable or prudent’ for the conditions at the time of the accident is a question of fact. While Mr. Yumul may have believed that he was driving at an appropriate speed, that does not make it so.

Whether Mr. Yumul’s speed at the time of the incident constitutes sufficiently negligent to deprive Mr. Yumul of the ‘sudden emergency doctrine’ is a question of fact for a jury to determine. (*Reynolds*, supra, 38 Cal.2d at 14; *Warren*, supra, 188 Cal.App.2d at 154 “[O]rdinarily, whether a person has been suddenly confronted with imminent peril, or whether such peril was brought about through her own negligence, is a question of fact for the jury.” citation omitted.)

In Reply, Amazon argues that the “Taylor Plaintiffs do not address the Amazon Defendants’ argument that Helen Taylor is not a proper plaintiff,” and as such the Court should dismiss Helene Taylor as a plaintiff. Amazon does not cite any portion of its moving papers to indicate where this argument was made. In reviewing Amazon’s moving paper, no such argument appears to have been made.

Notably, this theory was not presented in the Notice. “A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of motion.” (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.)

Conclusion

Based on the above, Amazon's motion for summary judgment, or in the alternative, summary adjudication is **denied in full**.

Evidentiary Objections:

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

12. 9:00 AM CASE NUMBER: N25-1678

CASE NAME:

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Approved.

13. 9:00 AM CASE NUMBER: N25-1718

CASE NAME: CLAIM OF:ALAUNEY DAVISALAUNEY DAVIS

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Approved.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C23-01054

CASE NAME: SWEET ADELINE INC VS. TASTYWINGS INC

***HEARING ON MOTION FOR DISCOVERY COMPEL PLTF SWEET ADELINE, INC. TO PRODUCE DOCUMENTS IN RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: MANSOUR, WALEED

TENTATIVE RULING:

The unopposed motion to compel request to produce documents nos. 2, 3, 8, 9, 10, 11, 12, 37, 38, 39, and 40 is granted. The court awards sanctions against Plaintiff in the amount of \$4942.50 payable within 21 days of the order being signed.

15. 9:01 AM CASE NUMBER: C23-00343

CASE NAME: JOHN SCOTT VS. GOLDEN RAIN FOUNDATION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET FIVE**

FILED BY: SCOTT, JOHN

TENTATIVE RULING:

Motion withdrawn on 12/18/25.